



November 26th 2018 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=DcctGss4loo
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1. Pre-Hearing & Committee Work Sessions

(Note: A formal public hearing was conducted prior to calling the regular/special meeting to order.)

- **Session Type & Topic:** 00:00:44 Statutory Public Hearing regarding the consideration of an ordinance / execution of a proposed Build-Operate-Transfer (BOT) lease agreement for a new Delaware County Jail and Justice Center (utilizing the former Wilson Middle School site).
- **Summary of Discussion:**
 - Representatives from developer RQAW (including Pete Peterson and Director of Architecture Eric Lefland) presented architectural designs and engineering findings. The proposed project aims to convert the former Wilson Middle School into a centralized 508-bed Justice Center housing the jail, sheriff's office, courts, clerk, prosecutor, probation, and community corrections.
 - Municipal advisor Matt Girl (Umbaugh) and bond counsel (Beasley, Bingham Greenbaum Doll) discussed the financing structure, noting an estimated \$45 million capital cost funded via local income tax economic development (EDIT) revenues without raising property or income taxes. They also noted that BOT statutes guarantee a fixed price with no change orders unless the county requests additions.

- Substantial public testimony raised concerns regarding transparency, public notice timing (Monday at 9:00 AM), lack of detailed financial data available for public inspection prior to the hearing, economic impacts on downtown Muncie, public transportation access (only one fixed bus route serves the site), and the need for robust mental health and substance abuse rehabilitation programs rather than expanded incarceration.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** 01:25:28 Presiding officer officially called the Special Meeting to order on Monday, November 26, 2018.
- **Attendance:**
 - **Present:** Commissioners Mr. Hammer, Ms. Regan, and Mr. Henry (Note: Presiding officer role shared among commissioners/staff; Steve Shrieve called roll).
 - **Absent:** None noted.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opening roll call conducted; ground rules and public hearing protocols announced.
- **Approval of Minutes:** Not addressed during the transcript excerpt.

4. Substantive Business & Board Action

- **01:26:59 Ordinance 2018-02-0: Introduction and First Reading of Ordinance Authorizing Proposed Build-Operate-Transfer (BOT) Lease Agreement**
 - **Sponsor / Presenter:** Delaware County Commissioners / Bond Counsel / Municipal Advisor.
 - **Deliberation Summary:** Commissioners discussed introducing the ordinance for a first reading, emphasizing that this was an initial step allowing for subsequent amendments and discussions rather than a final vote. Commissioners noted the necessity to address jail overcrowding and federal compliance mandates while attempting to avoid federal lawsuits and property/income tax increases.
 - **Item-Specific Public Input:** Extensive public testimony (detailed in Section 5) opposed the immediate advancement of the lease due to insufficient financial transparency, transportation barriers, and a desire to prioritize community-based rehabilitation and alternative sentencing.
 - **Action & Vote Disposition:** 01:27:03 Motion introduced by Commissioner Henry to approve Ordinance 2018-02-0 for its first reading. **Passed by Roll Call Vote (2 Yes,**

1 No (Mr. Henry: Yes, Ms. Regan: No, Mr. Hammer: Yes). *Note: Explicitly noted as an introduction/first reading only, not final action.*

5. Open Public Comment / Citizen Forum

- **00:18:46 Dr. Attack:** Spoke as a representative of the recovery community and former drug dealer, advocating for the inclusion of 12-step programs, detox facilities, and transitional housing for men to combat addiction rather than solely expanding jail capacity.
- **00:23:32 Dan Ridenour:** Spoke as a Muncie City Councilmember (on his own behalf), expressing concerns regarding public transportation access (only 1 of 14 city bus routes serves the proposed Wilson school site) and the negative economic impact of moving vital departments out of downtown Muncie.
- **00:25:37 Linda Hanson:** Spoke as spokesperson for the League of Women Voters of Muncie-Delaware County, urging commissioners to delay action on the lease until after a proper evening public forum can be held (citing inadequate notice and 9:00 AM Monday meeting timing) and comprehensive studies on downtown economic impact and inmate population trends are reviewed.
- **00:29:22 Tom Kinnett:** Suggested exploring alternative options, such as building a 1,000-bed jail annex on an existing industrial shell building on State Road 3 to house out-of-county inmates for net revenue, alongside dedicated vocational and rehabilitation spaces.
- **00:33:14 Tom Malapert:** Spoke as spokesperson for the Muncie Bar Association, questioning the provision of attorney-client meeting spaces in the new design, expressing concern over moving judicial functions away from downtown businesses, and criticizing the rush to approve a lease agreement without full financial review.
- **00:36:51 May McKenzie:** Expressed concern that funding the project through EDIT funds would starve other community infrastructure needs (such as neighborhood parks and sewer projects) of necessary funding for years.
- **00:38:41 Leslie McCrory:** Spoke as associate pastor and neighborhood leader, arguing that state mandate inspections did not require doubling incarceration capacity and calling for a focus on alternatives to incarceration, bail reform, and robust voluntary rehabilitation.
- **00:43:41 William Winstead:** Spoke as a hospital chaplain and NAMI chapter vice president, highlighting the lack of detail regarding medication-assisted treatment and mental health services, and warning that the facility risks disproportionately impacting minorities and those in poverty.
- **00:45:05 Jason Denny:** Criticized the lack of financial transparency, public notice compliance regarding public hearing documents, uncounted cumulative costs (interest, utility, staffing increases), and potential depletion of EDIT funds meant for economic development.
- **00:48:34 Mike Jones:** Spoke in support of the project, drawing comparisons to Indianapolis's justice center investments, noting historical out-of-county housing costs,

and emphasizing that commissioners have studied site selection thoroughly.

- **00:52:09 Chris Hyatt:** Questioned the long-term financial commitment of a \$50+ million obligation versus continuing to house overflow inmates out-of-county while rehabilitating existing facilities.
- **00:55:10 Rick [Last Name Unclear]:** Raised concerns regarding developer background, local economic impact, and the potential negative effect on downtown vitality given upcoming Ivy Tech student expansions.
- **00:58:51 Renee Mays:** Voiced concern over lack of transparency and a criminal justice approach that fails to invest in early intervention, preventative work, and economic opportunity.
- **01:01:12 Leslie Draper:** Emphasized that state inspection citations did not mandate massive facility expansion, warned against fueling mass incarceration trends, and questioned the psychological impact of placing a jail inside a former school building.
- **01:21:45 Monica [Last Name Unclear]:** Spoke on behalf of the Indiana Green Party, supporting a new jail location due to unsafe electrical/structural conditions and staff hazards at the current facility, but strongly emphasizing the urgent need to address mental health crises and support impoverished neighborhoods like the Five Points area.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Commissioners and advisors (Matt Girl, Beasley) clarified that the BOT process guarantees a fixed price preventing unauthorized change orders, and that ongoing discussions with city officials regarding drug rehabilitation partnerships would continue.
- **Adjournment:** **01:27:34** A motion to close the special meeting was made, seconded, and approved by voice/roll call vote (Steve Nicol, Regan: Yes, Henry: Yes). Meeting officially adjourned.

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